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2/13/2013 2:01:00 PM $25.00
Book - 10107 Pg - 6726-6732
Gary W. Ott
Recorder, Salt Lake County, UT
FIRST AMERICAN TITLE PARK CITY
BY: eCASH, DEPUTY - EF 7 P.

Recording Requested by:
First American Title Company, LLC
1755 Prospector Avenue, Suite A-100
Park City, UT 84060
(435)655-6800

AFTER RECORDING RETURN TO:
P.G.L.C., LLC
2025 Mahre Drive
Park City, UT 84098

SPACE ABOVE THIS LINE (3 ½" X 5") FOR RECORDER'S USE

DEED OF TRUST AND ASSIGNMENT OF RENTS

Escrow No. **041-5530092 (MCM)**
A.P.N.: **17-18-400-011-0000**

This Deed of Trust, made **February 06, 2013** between **Lize Trombley**, as TRUSTOR, whose address is , , First American Title Insurance Agency, LLC, a Delaware Limited Liability Company, as TRUSTEE, and **P.G.L.C., LLC** , as BENEFICIARY,
Witnesses: That Trustor CONVEYS AND WARRANTS TO TRUSTEE IN TRUST, WITH POWER OF SALE, the following described property, situated in **Salt Lake** County, State of Utah:

THE PATENTED PLACER MINING CLAIM AND PREMISES KNOWN AS THE UNION LINE STONE QUARRY PLACER MINING CLAIM, SURVEY NO. 5710, SITUATE IN THE HOT SPRINGS MINING DISTRICT, SALT LAKE COUNTY, UTAH, EMBRACING A PORTION OF SECTION 18, TOWNSHIP 1 SOUTH, RANGE 2 EAST, SALT LAKE BASE AND MERIDIAN, AND MORE PARTICULARLY DESCRIBED AS FOLLOWS: THE WEST HALF OF THE SOUTHWEST QUARTER OF THE SOUTHEAST QUARTER, AND THE NORTHEAST QUARTER OF THE SOUTHWEST QUARTER OF THE SOUTHEAST QUARTER, AND THE NORTHWEST QUARTER OF THE SOUTHEAST QUARTER OF SECTION 18, TOWNSHIP 1 SOUTH, RANGE 2 EAST, SALT LAKE BASE AND MERIDIAN. ALSO, BEGINNING AT CORNER NO. 1, A LIMESTONE 24 X 8 X 6 INCHES, MARKED BY 1-5710, WITH MOUND OF STONES, IDENTICAL WITH THE QUARTER CORNER BETWEEN SECTIONS 18 AND 19, SAID TOWNSHIP AND RANGE; THENCE, FIRST COURSE, NORTH 89°51' WEST 39.8 FEET TO CORNER NO. 2, A PINE POST 6 X 8 INCHES, 3.5 FEET LONG, MARKED 2-5710, IN MOUND OF STONES, SITUATE ON LINE BETWEEN SECTIONS 18 AND 19; THENCE, SECOND COURSE, NORTH 57°26' WEST 735.8 FEET TO CORNER NO. 3, A LIMESTONE 26 X 9 X 5 INCHES, MARKED 3-5710, IN MOUND OF STONES; THENCE THIRD COURSE, NORTH 924.1 FEET TO CORNER NO. 4, A ROUND PINE POST 5.5 INCHES IN DIAMETER, 4 FEET LONG, MARKED 4-5710, IN MOUND OF STONES; THENCE FOURTH COURSE, SOUTH 89°58' EAST 660 FEET TO CORNER NO. 5, A ROUND PINE POST 5.5 INCHES IN DIAMETER, 4 FEET LONG, MARKED 5-5710, IN MOUND OF STONES; THENCE FIFTH COURSE, SOUTH 1320 FEET TO CORNER NO. 1, THE PLACE OF BEGINNING. LESS AND EXCEPTING FROM THEREFROM, THE LAND CONVEYED TO, OR CONDEMNED BY, THE STATE ROAD COMMISSION OF UTAH, BY THE FOLLOWING INSTRUMENTS OF RECORD: QUIT-CLAIM DEED, RECORDED AUGUST 7, 1948, AS ENTRY NO. 1130487, IN BOOK 627, AT PAGE 173, OF THE OFFICIAL RECORDS; QUIT-CLAIM DEED, RECORDED JUNE 30, 1955, AS ENTRY NO. 1434209, IN BOOK 1213, AT PAGE 258, OF THE OFFICIAL RECORDS; QUIT-CLAIM DEED, RECORDED AUGUST 30, 1955, AS ENTRY NO. 1443908, IN BOOK 1233, AT PAGE 318, OF THE OFFICIAL RECORDS; QUIT-CLAIM DEED, RECORDED JULY 9, 1957, AS ENTRY NO. 1546536, IN BOOK 1427, AT PAGE 214, OF THE OFFICIAL RECORDS; QUIT-CLAIM DEED, RECORDED DECEMBER 20, 1968, AS ENTRY NO. 2271173, IN BOOK 2716, AT PAGE 627, OF THE OFFICIAL RECORDS; QUIT-CLAIM DEED, RECORDED JANUARY 29, 1969, AS ENTRY NO. 2275143, IN BOOK 2726, AT PAGE 39, OF THE OFFICIAL RECORDS; ORDER OF IMMEDIATE OCCUPANCY, RECORDED JUNE 18, 1969, AS ENTRY NO. 2292045, IN BOOK 2764, AT PAGE 89, OF THE OFFICIAL RECORDS; QUIT-CLAIM DEED, RECORDED OCTOBER 10, 1974, AS ENTRY NO. 2657511, IN BOOK 3699, AT PAGE 431, OF THE OFFICIAL RECORDS; QUIT-CLAIM DEED, RECORDED OCTOBER 10, 1974, AS ENTRY NO. 2657512, IN BOOK 3699, AT PAGE 432, OF THE OFFICIAL RECORDS. ALSO, LESS AND EXCEPTING THEREFROM, ANY PORTION LYING WITHIN THE BOUNDS OF INTERSTATE 80. ALSO, LESS AND EXCEPTING THEREFROM, ANY PORTION LYING WITHIN THE BOUNDS OF THE DENVER & RIO GRANDE WESTERN RAILROAD RIGHT OF WAY. ALSO, LESS AND EXCEPTING THEREFROM, ANY PORTION LYING NORTH OR NORTHERLY OF THE HIGHWAY COMMONLY KNOWN AS INTERSTATE 80, AS CONVEYED TO RULON J. HARPER BY THE FOLLOWING INSTRUMENTS OF RECORD: SPECIAL WARRANTY DEED, RECORDED APRIL 7, 1997, AS ENTRY NO. 6612887, IN BOOK 7637, AT PAGE 864, OF THE OFFICIAL RECORDS; SPECIAL WARRANTY DEED, RECORDED MARCH 19, 2002, AS ENTRY NO. 8179643, IN BOOK 8577, AT PAGE 8293, OF THE OFFICIAL RECORDS. PARCEL 12: THE PATENTED PLACER MINING CLAIM AND PREMISES KNOWN AS THE PORTLAND CEMENT NO. 1 AND PORTLAND CEMENT NO. 2 PLACER MINING CLAIMS, SURVEY NO. 4269, SITUATE IN THE HOT SPRINGS MINING DISTRICT, SALT LAKE COUNTY, UTAH, EMBRACING PORTIONS OF SECTIONS 18 & 19, TOWNSHIP 1 SOUTH, RANGE 2 EAST, SALT LAKE BASE AND MERIDIAN, AND MORE PARTICULARLY DESCRIBED AS FOLLOWS: WITH MAGNETIC VARIATION 16°36' EAST. BEGINNING FOR THE DESCRIPTION OF THE PORTLAND CEMENT NO. 1 PLACER CLAIM AT CORNER NO. 1, A PINE POST 4 INCHES SQUARE, MARKED 1-1-4269, IN MOUND OF STONE, FROM WHICH THE SOUTHWEST CORNER OF SECTION 24, IN TOWNSHIP 1 SOUTH, OF RANGE 1 EAST, SALT LAKE BASE AND MERIDIAN, BEARS SOUTH 48°34' WEST 8,440 FEET DISTANT, AND THE CORNER COMMON TO SECTIONS 13 AND 24, IN TOWNSHIP 1 SOUTH, OF RANGE 1 EAST, AND SECTIONS 18 AND 19, IN TOWNSHIP 1 SOUTH, OF RANGE 2 EAST, SALT LAKE BASE AND MERIDIAN BEARS SOUTH 73°57' WEST 1,064.8 FEET DISTANT. THENCE, FIRST COURSE, SOUTH 57°26' EAST 554.3 FEET INTERSECT SOUTH BOUNDARY LINE OF SAID SECTION 18; 971 FEET PARLEYS

CANON CREEK; 1,384 FEET TO CORNER NO. 2, FROM WHICH THE CENTER OF CUT BEARS NORTH 47°30' WEST 450 FEET DISTANT. THENCE, SECOND COURSE, NORTH 34°44' EAST 500 FEET TO CORNER NO. 3. THENCE, THIRD COURSE, NORTH 57°26' WEST 61.9 FEET INTERSECT SOUTH BOUNDARY LINE OF SAID SECTION 18; 245 FEET SAID PARLEYS CANON CREEK; 1,384 FEET TO CORNER NO. 4. THENCE, FOURTH COURSE, SOUTH 34°44' WEST 500 FEET TO CORNER NO. 1, THE PLACE OF BEGINNING. BEGINNING FOR THE DESCRIPTION OF THE PORTLAND CEMENT NO. 2 PLACER CLAIM AT CORNER NO. 1, IDENTICAL WITH CORNER NO. 1 OF SAID PORTLAND CEMENT NO. 1 PLACER CLAIM. THENCE, FIRST COURSE, SOUTH 57°26' EAST 554.3 FEET INTERSECT SOUTH BOUNDARY LINE OF SAID SECTION 18; 971 FEET SAID PARLEYS CANON CREEK; 1,384 FEET TO CORNER NO. 2, IDENTICAL WITH CORNER NO. 2 OF SAID PORTLAND CEMENT NO. 1 PLACER CLAIM. THENCE, SECOND COURSE, SOUTH 34°44' WEST 500 FEET TO CORNER NO. 3. THENCE, THIRD COURSE, NORTH 57°26' WEST 800 FEET SAID PARLEYS CANON CREEK; 1,384 TO CORNER NO. 4. THENCE, FOURTH COURSE, NORTH 34°44' EAST 139.1 FEET INTERSECT SOUTH BOUNDARY LINE OF SAID SECTION 18; 500 FEET TO CORNER NO. 1, THE PLACE OF BEGINNING. LESS AND EXCEPTING FROM THEREFROM, THE LAND CONVEYED TO, OR CONDEMNED BY, THE STATE ROAD COMMISSION OF UTAH, BY THE FOLLOWING INSTRUMENTS OF RECORD: QUIT-CLAIM DEED, RECORDED AUGUST 7, 1948, AS ENTRY NO. 1130487, IN BOOK 627, AT PAGE 173, OF THE OFFICIAL RECORDS; QUIT-CLAIM DEED, RECORDED JULY 9, 1957, AS ENTRY NO. 1546536, IN BOOK 1427, AT PAGE 214, OF THE OFFICIAL RECORDS; QUIT-CLAIM DEED, RECORDED DECEMBER 20, 1968, AS ENTRY NO. 2271173, IN BOOK 2716, AT PAGE 627, OF THE OFFICIAL RECORDS; ORDER OF IMMEDIATE OCCUPANCY, RECORDED JUNE 18, 1969, AS ENTRY NO. 2292045, IN BOOK 2764, AT PAGE 89, OF THE OFFICIAL RECORDS; QUIT-CLAIM DEED, RECORDED OCTOBER 10, 1974, AS ENTRY NO. 2657511, IN BOOK 3699, AT PAGE 431, OF THE OFFICIAL RECORDS; QUIT-CLAIM DEED, RECORDED OCTOBER 10, 1974, AS ENTRY NO. 2657512, IN BOOK 3699, AT PAGE 432, OF THE OFFICIAL RECORDS. ALSO, LESS AND EXCEPTING THEREFROM, ANY PORTION LYING WITHIN THE BOUNDS OF INTERSTATE 80. ALSO, LESS AND EXCEPTING THEREFROM, ANY PORTION LYING WITHIN THE BOUNDS OF THE DENVER & RIO GRANDE WESTERN RAILROAD RIGHT OF WAY. ALSO, LESS AND EXCEPTING THEREFROM, ANY PORTION LYING NORTH OR NORTHERLY OF THE HIGHWAY COMMONLY KNOWN AS INTERSTATE 80, AS CONVEYED TO RULON J. HARPER BY THE FOLLOWING INSTRUMENTS OF RECORD: SPECIAL WARRANTY DEED, RECORDED APRIL 7, 1997, AS ENTRY NO. 6612887, IN BOOK 7637, AT PAGE 864, OF THE OFFICIAL RECORDS; SPECIAL WARRANTY DEED, RECORDED MARCH 19, 2002, AS ENTRY NO. 8179643, IN BOOK 8577, AT PAGE 8293, OF THE OFFICIAL RECORDS.

Tax ID Number: **17-18-400-011-0000**

Together with all buildings, fixtures and improvements thereon and all water rights, rights of way, easements, rents, issues, profits, income, tenements, hereditaments, privileges and appurtenances thereunto belonging, now or hereafter used or enjoyed with said property, or any part thereof, SUBJECT, HOWEVER, to the right, power and authority hereinafter given to and conferred upon Beneficiary to collect and apply such rents, issues, and profits.

For the Purpose of Securing:

(1) payment of the indebtedness evidenced by a promissory note of even date hereof in the principal sum of **$2,430.00** made by Trustor, payable to the order of Beneficiary at the times, in the manner and with interest as therein set forth, and any extensions and/or renewals or modifications thereof; (2) the performance of each agreement of Trustor herein contained; (3) the payment of such additional loans or advances as hereafter may be made to Trustor, or his successors or assigns, when evidenced by a promissory note or notes reciting that they are secured by this Deed of Trust; and (4) the payment of all sums expended or advanced by Beneficiary under or pursuant to the terms hereof, together with interest thereon as herein provided.

To Protect the Security of This Deed of Trust, Trustor Agrees:

1. To keep said property in good condition and repair; not to remove or demolish any building thereon; to complete or restore promptly and in good and workmanlike manner any building which may

be constructed, damaged or destroyed thereon; to comply with all laws, covenants and restrictions affecting said property; not to commit or permit waste thereof; not to commit, suffer or permit any act upon said property in violation of law to do all other acts which from the character or use of said property may be reasonably necessary, the specific enumerations herein not excluding the general; and, if the loan secured hereby or any part thereof is being obtained for the purpose of financing construction of improvements on said property Trustor further agrees:

(a) To commence construction promptly and to pursue same with reasonable diligence to completion in accordance with plans and specifications satisfactory to Beneficiary, and

(b) To allow Beneficiary to inspect said property at all times during construction.

Trustee, upon presentation to it of an affidavit signed by Beneficiary, setting forth facts showing a default by Trustor under this numbered paragraph, is authorized to accept as true and conclusive all facts and statements therein, and to act thereon hereunder.

2. To provide and maintain insurance, of such type or types and amounts as Beneficiary may require, on the improvements now existing or hereafter erected or placed on said property. Such insurance shall be carried in companies approved by Beneficiary with loss payable clauses in favor of and in form acceptable to Beneficiary. In the event of loss, Trustor shall give immediate notice to Beneficiary, who may make proof of loss, and each insurance company concerned is hereby authorized and directed to make payment for such loss directly to Beneficiary, instead of to Trustor and Beneficiary jointly, and the insurance proceeds, or any part thereof, may be applied by Beneficiary, at it's option, to the reduction of the indebtedness hereby secured or to the restoration or repair of the property damaged. In the event that the Trustor shall fail to provide satisfactory hazard insurance, the Beneficiary may procure, on the Trustor's behalf, insurance in favor of the Beneficiary alone. If insurance cannot be secured by the Trustor to provide the required coverage, this will constitute an act of default under the terms of this Deed of Trust.

3. To deliver to, pay for and maintain with Beneficiary until the indebtedness secured hereby is paid in full, such evidence of title as Beneficiary may require, including abstracts of title or policies of title insurance and any extensions or renewals thereof or supplements thereto.

4. To appear in and defend any action or proceeding purporting to affect the security hereof, the title to said property, or the rights or powers of Beneficiary or Trustee; and should Beneficiary or trustee elect to appear in or defend any such action or proceeding, to pay all costs and expenses, including cost of evidence of title and attorney's fees in a reasonable sum incurred by Beneficiary or Trustee.

5. To pay at least 10 days before delinquency all taxes and assessments affecting said property, including all assessments upon water company stock and all rents, assessments and charges for water, appurtenant to or used in connection with said property; to pay, when due, all encumbrances, charges, and liens with interest, on said property or any part thereof, which at any time appear to be prior or superior hereto; to pay all costs, fees, and expenses of this Trust.

6. To pay to Beneficiary monthly, in advance, an amount, as estimated by Beneficiary in its discretion, sufficient to pay all taxes and assessments affecting said property, and all premiums on insurance therefor, as and when the same shall become due.

7. Should Trustor fail to make any payment or do any act as herein provided, then Beneficiary or Trustee, but without obligation so to do and without notice to or demand upon Trustor and without releasing Trustor from any obligation hereof, may: Make or do the same in such manner and to such extent as either may deem necessary to protect the security hereof, Beneficiary or Trustee being authorized to enter upon said property for such purposes; commence, appear in and defend any action or proceeding purporting to affect the security hereof or the rights or powers of Beneficiary of Trustee; pay, purchase, contest, or compromise any encumbrance, charge or lien which in the judgment of either appears to be prior or superior hereto; and in exercising such powers, incur any liability, expend whatever amounts in its absolute discretion it may deem necessary therefor, including cost of evidence of title, employ counsel, and pay his reasonable fees.

8. To pay immediately and without demand all sums expended hereunder by Beneficiary or Trustee, with interest from date of expenditure at the rate of **See Note Terms%** per annum until paid, and the repayment thereof shall be secured hereby.

IT IS MUTUALLY AGREED THAT:

9. Should said property or any part thereof be taken or damaged by reason of any public improvement or condemnation proceeding, or damaged by fire, or earthquake, or in any other manner, Beneficiary shall be entitled to all compensation, awards, and other payments or relief therefor, and shall be entitled at its option to commence, appear in and prosecute in its own name, any action or proceedings, or to make any compromise or settlement, in connection with such taking or damage. All such compensation, awards, damages, rights of action and proceeds, including the proceeds of any policies of fire and other insurance affecting said property, are hereby assigned to Beneficiary, who may, after deducting therefrom all its expenses, including attorney's fees, apply the same on any indebtedness secured hereby. Trustor agrees to execute such further assignments of any compensation, award, damages, and rights of action and proceeds as Beneficiary or Trustee may require.

10. At any time and from time to time upon written request of Beneficiary, payment of its fees and presentation of this Deed of Trust and the note for endorsement (in case of full reconveyance, for cancellation and retention) without affecting the liability of any person for the payment of the indebtedness secured hereby, and without releasing the interest of any party joining in this Deed of Trust, Trustee may (a) consent to the making of any map or plat of said property; (b) join in granting any easement or creating any restriction thereon; (c) join in any subordination or other agreement affecting this Deed of trust or the lien or charge thereof; (d) grant any extension or modification of the terms of this loan; (e) reconvey, without warranty, all or any part of said property. The grantee in any reconveyance may be described as "the person or persons entitled thereto", and the recitals therein of any matters or facts shall be conclusive proof of the truthfulness thereof. Trustor agrees to pay reasonable trustee's fees for any of the services mentioned in this paragraph.

11. As additional security, Trustor hereby assigns to Beneficiary, during the continuance of these trusts, all rents, issues, royalties and profits of the property affected by this Deed of trust and of any personal property located thereon. Until Trustor shall default in the payment of any indebtedness secured hereby or in the performance of any agreement hereunder, Trustor shall have the right to collect all such rents, issues, royalties and profits earned prior to default as they become due and payable. If Trustor shall default as aforesaid, Trustor's right to collect any of such moneys shall cease and Beneficiary shall have the right, with or without taking possession of the property affected hereby, to collect all rents, royalties, issues, and profits. Failure or discontinuance of Beneficiary at any time or from time to time to collect any such moneys shall not in any manner affect the subsequent enforcement by Beneficiary of the right, power, and authority to collect the same. Nothing contained herein, nor the exercise of the right by Beneficiary to collect, shall be, or construed to be, an affirmation by Beneficiary of any tenancy, lease or option, nor an assumption of liability under, nor a subordination of the lien or charge of this Deed of Trust to any such tenancy, lease or option.

12. Upon any default by Trustor hereunder, Beneficiary may at any time without notice, either in person, by agent, or by a receiver to be appointed by a court (Trustor hereby consenting to the appointment of Beneficiary as such receiver), and without regard to the adequacy of any security for the indebtedness hereby secured, enter upon and take possession of said property or any part thereof, in its own name sue for or otherwise collect said rents, issues, and profits, including those past due and unpaid, and apply the same, less costs and expenses of operation and collection, including reasonable attorney's fees, upon any indebtedness secured hereby, and in such order as Beneficiary may determine.

13. The entering upon and taking possession of said property, the collection of such rents, issues, and profits, or the proceeds of fire and other insurance policies, or compensation or awards for any taking or damage of said property, and the application or release thereof as aforesaid, shall not cure or waive any default or notice of default hereunder or invalidate any act done pursuant to such notice.

14. The failure on the part of the Beneficiary to promptly enforce any right hereunder shall not operate as a waiver of such right and the waiver by Beneficiary of any default shall not constitute a waiver of any other or subsequent default.

15. Time is of the essence hereof. Upon default by Trustor in the payment of any indebtedness secured hereby or in the performance of any agreement hereunder, all sums secured hereby shall immediately become due and payable at the option of Beneficiary. In the event of such default, Beneficiary may execute or cause Trustee to execute a written notice of default and of election to cause said property to be sold to satisfy the obligations hereof and Trustee shall file such notice for record in each county wherein said property or some part or parcel thereof is situated. Beneficiary also shall deposit with Trustee, the note and all documents evidencing expenditures secured hereby.

16. After the lapse of such time as may then be required by law following the recordation of said notice of default, and notice of default and notice of sale having been given as then required by law, Trustee, without demand on Trustor, shall sell said property on the date and at the time and place designated in said notice of sale, either as a whole or in separate parcels, and in such order as it may determine (but subject to any statutory right of Trustor to direct the order in which such property, if consisting of several known lots or parcels, shall be sold), at public auction to the highest bidder, the purchase price payable in lawful money of the United States at the time of sale. The person conducting the sale may, for any cause he deems expedient, postpone the sale from time to time until it shall be completed and, in every such case, notice of postponement shall be given by public declaration thereof by such person at the time and place last appointed for the sale; provided, if the sale is postponed for longer than such time as may be required by law beyond the day designated in the notice of sale, notice thereof shall be given in the same manner as the original notice of sale. Trustee shall execute and deliver to the purchaser its Deed conveying said property so sold, but without any covenant of warranty, express or implied. The recitals in the Deed of any matters or facts shall be conclusive proof of the truthfulness thereof. Any person, including Beneficiary, may bid at the sale. Trustee shall apply the proceeds of the sale to payment of (1) the costs and expenses of exercising the power of sale and of the sale, including the payment of the Trustee's and attorney's fees; (2) cost of any evidence of title procured in connection with such sale and revenue stamps on Trustee's Deed; (3) all sums expended under the terms hereof, not then repaid, with accrued interest at **See Note Terms%** per annum from date of expenditure; (4) all other sums then secured hereby; and 5) the remainder, if any, to the person or persons legally entitled thereto, or the Trustee, in its discretion, may deposit the balance of such proceeds with the County Clerk of the country in which the sale took place.

17. Trustor agrees to surrender possession of the hereinabove described Trust property to the Purchaser at the aforesaid sale, immediately after such sale, in the event such possession has not previously been surrendered by Trustor.

18. Upon the occurrence of any default hereunder, Beneficiary shall have the option to declare all sums secured hereby immediately due and payable and foreclose this Deed of Trust in the manner provided by law for the foreclosure of mortgages on real property and Beneficiary shall be entitled to recover in such proceedings all costs and expenses incident thereto, including a reasonable attorney's fee in such amount as shall be fixed by the court.

19. Beneficiary may appoint a successor trustee at any time by filing for record in the office of the County Recorder of each county in which said property or some part thereof is situated, a substitution of trustee. From the time the substitution is filed for record, the new trustee shall succeed to all the powers, duties, authority and title of the trustee named herein or of any successor trustee. Each such substitution shall be executed and acknowledged, and notice thereof shall be given and proof thereof made, in the manner provided by the law.

20. This Deed of Trust shall apply to, inure to the benefit of, and bind all parties hereto, their heirs, legatees, devisees, administrators, executors, successors and assigns. All obligations of Trustor hereunder are joint and several. The term "Beneficiary" shall mean the owner and holder, including any pledge, of the note secured hereby. In this Deed of Trust, whenever the context so requires, the masculine gender includes the feminine and/or neuter, and the singular number includes the plural.

21. Trustee accepts this Trust when this Deed of Trust, duly executed and acknowledged, is made a public record as provided by law. Trustee is not obligated to notify any party hereto of pending sale under any other Deed of Trust or of any action or proceeding in which Trustor, Beneficiary, or trustee shall be a party, unless brought by Trustee.

22. This Deed of trust shall be construed according to the laws of the State of Utah.

23. The undersigned Trustor requests that a copy of any notice of default and of any notice of sale hereunder be mailed to him at the address hereinbefore set forth.

Lize Trombley

Lize Trombley

STATE OF **UT**)
)ss.
County of Wasatch)

On February 12, 2013, before me, the undersigned Notary Public, personally appeared **Lize Trombley**, personally known to me (or proved to me on the basis of satisfactory evidence) to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies) and that by his/her/their signature(s) on the instrument the person(s) or the entity upon behalf of which the person(s) acted, executed the instrument.

WITNESS my hand and official seal.

My Commission Expires: 11-4-2016

Carma Jacobsen

Notary Public

CARMA JACOBSEN
Notary Public
State of Utah
Comm. No. 661053
My Comm. Expires Dec 4, 2016